

Editorial

Who'll Take Charge?

THE TALE OF the suicide of 25-year-old Praveen Kumar in November has yet again raised concerns about the extent and growth of cyber-crime in India. Kumar, a hotel management graduate from Kerala, met someone in a chat room who claimed to be a consultant with an oil company based out of the UK. Having befriended Kumar over a couple of chat sessions, the “consultant” asked him to send over his CV for a job opening at the company. Kumar promptly obliged. The next day, he got a job offer: assistant administrative officer at the oil company, with a fat pay packet—£4,600 (Rs 3.7 lakh) per month. There was, of course, a clause—the consultant needed money to arrange for documents: visa, medical and migration certificates, and so on. These amounted to Rs 8.5 lakh.

Kumar's father obliged, but soon after, the “consultant” could not be contacted. Kumar had fallen prey to a Nigerian fraudster, and the incident pushed him over the brink.

In another case, the police arrested a 27-year-old man for allegedly cheating a Mumbai-based software engineer through the Internet by posing as a woman and stealing money from his bank account.

Rajesh, a resident of Ambalamukku, Kerala, ran an Internet cafe. After befriending the engineer through chat, Rajesh posed as “Renuka” using a voice converter. He later forwarded a photo from a marriage bureau to the engineer, who provided a credit card and code to “her” to withdraw Rs 2,500 for a flight ticket to Mumbai. Rs 22,000 was withdrawn using the card.

I'm just citing two incidents here from the thousands of instances of cyber-fraud in India. The problem is, only a few know and understand the gravity of the problem while even fewer know how to combat it. Finding a solution is left either to the governmental agencies such as the ministry of information technology, or the owners of the sites the fraud stems from. There is little the police can do here. Ill-equipped in terms of both infrastructure and knowledge of cyber-crime and its practice, the specially-created Cyber-crime Investigation Cell is usually helpless. Private institutions, software companies and ethical hackers help them solve such cases.

Even if the Cyber-crime Investigation Cell does find a way to nail down the criminal, our cyber-laws



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leave a sufficient number of loopholes for fraudsters to evade prison. Indian cyber-law needs a lot of beefing up to be able to spell out clearly what online acts are fraudulent, and the punitive measure in each case. Also, with cyber-crime happening in newer and different forms, the shaping up of cyber-law needs to be evolutionary.

The lack of understanding—even knowledge of—cyberspace amongst the lawmakers, and the almost negligible focus on cyber-crime at governmental bodies and even in police departments, means the general population will continue to be open to the threat of online con-men. What kind of wake-up call is needed?

A handwritten signature in black ink, appearing to read 'Deepak Ajwani'.

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